

## TENTATIVE RULINGS

### DEPT CM2

Judge Andre De La Cruz

**Court Reporters:** Official court reporters (*i.e.*, court reporters employed by the Court) are not provided for law and motion matters in this Department. If a party desires a record of a law and motion proceeding, it will be the party's responsibility to provide a court reporter. Parties must comply with the Court's policy on the use of privately retained court reporters, which can be found at:

- [Civil Court Reporter Pooling](#); and
- [Court Reporter Interpreter Services](#).

**Tentative rulings:** The Court endeavors to post tentative rulings on the Court's website no later than Wednesday afternoon immediately preceding Thursday's hearing. Moreover, tentative rulings may not be posted in every case.

*Please do not call the department for tentative rulings if tentative rulings have not been posted.*

The Court will not entertain a request to continue a hearing or the filing of further documents once a tentative ruling has been posted. Further, a motion may not be taken off calendar once a tentative ruling has been posted unless the entire action has been dismissed.

**Submitting on tentative rulings:** If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk by sending an email to: [acarbajal@occourts.org](mailto:acarbajal@occourts.org). Please do not call the Department unless all parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling, and the prevailing party shall give notice of the ruling and prepare an order for the Court's signature if appropriate under Cal. R. Ct. 3.1312.

When a proposed order is required, even if motion is unopposed, the parties are ordered to submit it in two formats: (1) one draft in MS Word (\*.doc or \*.docx); and (2) one draft in PDF format with all attachments/exhibits attached thereto in accordance with Cal. R. Ct. 3.1312(c)(1) and (2).

**Non-appearances:** If nobody appears for a hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. *See Lewis v. Fletcher Jones Motor Cars, Inc.*, 205 Cal. App. 4th 436, 442 (2012), fn. 1.

**Appearances:** Department CM2 conducts non-evidentiary proceedings, such as law and motion, remotely, by Zoom videoconference pursuant to Code of Civil Procedure § 367.75 and Orange County Local Rule (OCLR) 375. All counsel and self-represented parties appearing for such hearings must check-in online through the Court’s website at <https://www.occourts.org/civil-remote-hearings> prior to the commencement of their hearing. Once the online check-in is completed, participants will be prompted to join the courtroom’s Zoom hearing session. Participants will initially be directed to a virtual waiting room pending the start of their specific video hearing.

It is your responsibility to ensure that your audio and video are functioning properly prior to your hearing.

Parties preferring to appear in-person for law and motion hearings may do so pursuant to Code of Civil Procedure § 367.75 and OCLR 375.

**Public Access:** The courtroom remains open for all evidentiary and non-evidentiary proceedings.

*No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and OCLR 180.*

**TENTATIVE RULINGS**  
**July 30, 2026**

| #  | Case Name                                                                       | Tentative                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |
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| 1. | <a href="#">30-2024-01446495-CU-FR-NJC</a><br>WVJP 2021-4, LP<br>vs. Tucciarone | <p>Before the Court are two (2) motions: Motion to Compel Further Response to Production (ROA 153) and Motion to Compel Further Responses to Production (ROA 157).</p> <p>On March 20, 2026, Plaintiff WVJP (“Plaintiff”) filed Motion to Compel Further Response to Production (ROA 153) against Defendant Joseph Tucciarone (“Defendant Joseph”) and Motion to Compel Further Responses to Production (ROA 157) against Defendant Alex Tucciarone (“Defendant Alex”) (referred to collectively as “Defendants”). ROAs 153, 157.</p> <p>The only remaining disputes are Request for Production Nos. 7-13 as to Defendant Joseph and Request for Production Nos. 8, and 13-15 as to Defendant Alex. ROA 191.</p> |

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|  |  | <p>Plaintiff requests that the Court order Defendant Joseph further responses to the requests at issue and impose \$1837.50 in sanctions. ROA 153.</p> <p>Additionally, Plaintiff requests that the Court order Defendant Alex to provide further responses to the requests at issue and impose another \$1837.50 in sanctions. ROA 157.</p> <p>Defendants request that the Motions be denied in their entirety. ROAs 193, 195.</p> <p style="text-align: center;">I. Motion to Compel Further Responses and Meet and Confer Requirements</p> <p>Under California Code of Civil Procedure Section 2033.290, a motion to compel further responses to requests for production shall be accompanied by a meet and confer declaration. Cal. Civ. Proc. Code § 2031.310.</p> <p>Effective January 1, 2026, a meet and confer declaration “shall state facts showing a reasonable and good faith attempt” on the part of the moving party to meet and confer either in person, telephonically, or by videoconference; email alone will not suffice. Cal. Civ. Proc. Code § 2016.040(a). Additionally, the moving party’s declaration “shall include whether [they have] met and conferred, including through an electronic communication, regarding the retention of a certified shorthand reporter to report the hearing on the motion.” Cal. Civ. Proc. Code § 2016.040(b).</p> <p>“A reasonable and good faith attempt at informal resolution entails something more than bickering with opposing counsel. Rather, the law requires that counsel attempt to talk the matter over, compare their views, consult, and deliberate.” <i>Townsend v. Super. Ct.</i>, 61 Cal. App. 4th 1431, 1439 (1998).</p> <p>Determining the adequacy of an attempt at informal resolution contemplates the exercise of judicial discretion. <i>In re Marriage of Moore</i>, 102 Cal. App. 5th 1275, 1294 (2024).</p> |
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The Court finds that Plaintiff's meet and confer declarations failed to provide sufficient facts showing a reasonable and good faith attempt to meet and confer either *in person*, *telephonically*, or by *videoconference*. The declarations also lacked an attestation regarding the retention of a certified shorthand reporter as required by Section 2016.040(b). Accordingly, the meet and confer declarations are procedurally deficient, and the Motions to Compel Further Responses to Request for Production (ROAs 153, 157) are **DENIED**.

## II. Mandatory Sanctions

California Code of Civil Procedure Section 2031.310(h) provides that the court "shall impose a monetary sanction under Chapter 7 against [anyone] who unsuccessfully makes or opposes a motion to compel further responses to a demand . . . *unless* it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." Cal. Civ. Proc. Code § 2031.310(h).

Here, the Court finds no substantial justification for Plaintiff's failure to satisfy the provisions of California Code of Civil Procedure Section 2016.040(b). However, Defendants did not seek sanctions, thus, the imposition of sanctions would be unjust.

Accordingly, Plaintiff's Motion to Compel Further Responses to Request for Production (ROA 153) and Motion to Compel Further Responses to Request for Production (ROA 157) are **DENIED**.

Defendants to give notice.

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| 3. | <p><a href="#"><u>30-2025-01469475-CU-BC-CJC</u></a><br/>Tucker vs. Jaguar Land Rover North America, LLC</p> | <p>Before the Court is one Motion for Order Granting Relief from the Court's February 23, 2026, Order, brought by Defendant Jaguar Land Rover North America, LLC ("Defendant") pursuant to California Code of Civil Procedure Section 473(b). ROA 81.</p> <p>Defendant requests that the Court set aside its Order granting Plaintiff's Motion to Compel Deposition ("M-DEPO") of Defendant's Person Most Qualified ("PMQ") and grant Defendant relief from sanctions entered against Defendant's counsel in the amount of \$3,800. ROA 81, p.2; ROA 60.</p> <p>I. Discretionary Relief for Mistake under Section 473(b)</p> <p>California Code of Civil Procedure Section 473 provides "the court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect." Cal. Civ. Proc. Code § 473(b). The statute further requires that an application for relief "be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted." <i>Id.</i> Application for this relief "shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken." <i>Id.</i></p> <p>California Code of Civil Procedure section 473 is not limited to relief from default judgments or mistakes in pleadings. Although the statute appears in the chapter addressing "Mistakes in Pleadings and Amendments," by its plain language, the statute authorizes a court to relieve a party from a "judgment, dismissal, <i>order</i>, or <i>other proceeding</i>" taken against that party . . . ." Cal. Civ. Proc. Code § 473(b) (emphasis added); <i>see also Zellerino v. Brown</i>, 235 Cal. App. 3d 1097, 1106 (1991) (finding that discovery motions are "proceedings" under the meaning of Section 473 and that parties may seek relief under Section 473 from courts' orders issued in discovery proceedings where the relief sought is not provided in the applicable section of the</p> |
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|  |  | <p>discovery act).</p> <p>California courts have consistently recognized the distinction between the discretionary and mandatory provisions of section 473(b). <i>See Minick v. City of Petaluma</i> ("<i>Minick</i>"), 3 Cal. App. 5th 15, 25 (2016). The discretionary provision applies broadly to "any judgment, dismissal, order, or other proceeding," whereas the mandatory attorney-fault provision is limited to defaults, default judgments, and dismissals. <i>Id.</i> As the court explained in <i>Minick</i>, the Legislature intentionally limited mandatory relief while preserving broad discretionary authority to set aside judgments, orders, and other proceedings entered through mistake, inadvertence, surprise, or excusable neglect. <i>Minick, supra</i>, 3 Cal. App. 5th at p. 26.</p> <p>However, while relief under the discretionary provision is available only where excusable neglect is found, the mandatory provision is appropriate even in cases of <i>inexcusable</i> neglect. <i>See Rodriguez v. WNT, Inc.</i> ("<i>Rodriguez</i>"), 116 Cal. App. 5th 791, 803 (2025).</p> <p>The mandatory provision has been applied in the discovery context where the resulting order falls within the statute's limited scope. <i>See Aldrich v. San Fernando Valley Lumber Co.</i>, 170 Cal. App. 3d 725, 736 (1985) ("an order for dismissal entered for failure to comply with an order compelling answers to interrogatories is the practical equivalent of a default judgment.").</p> <p>Applying this principle, the Court in <i>Rodriguez</i> held that a dismissal entered as a terminating discovery sanction qualified for mandatory relief under section 473(b), provided the statutory requirements were satisfied, including the submission of verified discovery responses. <i>Rodriguez, supra</i>, 234 Cal. App. 4th at 729 ("when relief is sought from a terminating sanction imposed for failing to provide discovery responses, the application must be accompanied by verified responses to the discovery in question."). Likewise, in <i>Matera v. McLeod</i>, the court held that a default judgment entered after an answer was struck as a discovery sanction constituted a default judgment eligible for mandatory relief based on an attorney affidavit</p> |
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|  | <p>of fault. <i>Matera v. McLeod</i> (2006) 145 Cal. App. 4th 44, 67 (2006).</p> <p>Section 473 relief is not unlimited, however. Courts have declined to grant discretionary relief where the discovery violations resulted from a party's deliberate or willful misconduct rather than excusable neglect. <i>See Rodriguez, supra</i>, 116 Cal. App. 5th at 803. Likewise, mandatory relief is unavailable where both the attorney and the client share responsibility for the misconduct that resulted in the default or dismissal. <i>Id.</i>; <i>Lang v. Hochman</i> (2000) 77 Cal.App.4th 1225, 1248 (2000) ("where the parties to a lawsuit have contributed to a default or dismissal, they are not entitled to relief pursuant to subsection (b) of section 473.&gt;").</p> <p>Accordingly, section 473(b) is not confined to defaults or pleading errors. Its discretionary provision authorizes relief from discovery orders and other discovery-related proceedings when the statutory requirements are met, and no express provision in the relevant section of the discovery act provides for the relief sought. Its mandatory, attorney-fault provision, however, remains limited to defaults, default judgments, dismissals and, in the discovery context, orders imposing terminating sanctions.</p> <p>Plaintiff cites <i>Gilberd v. AC Transit</i> and <i>Morite of California v. Superior Court</i> to support the contention that courts have consistently "rejected efforts to circumvent the procedural safeguards of section 1008 by applying for relief from a Court's order under Section 473." ROA 90, p.3; <i>See Gilberd v. AC Transit</i> ("<i>Gilberd</i>"), 32 Cal. App. 4th 1494, 1501 (1995) (holding the notion that "the general relief mechanism provided in Code Civ. Proc., § 473, could be used to circumvent the jurisdictional requirements for reconsideration found in Code Civ. Proc., § 1008, would undermine the intent of the Legislature as specifically expressed in Code Civ. Proc., § 1008, subd. (e), which provides that no application to reconsider any order may be considered by any judge or court unless made according to that section."); <i>see also Morite of Cal. v. Super. Ct.</i> ("<i>Morite</i>"), 19 Cal. App. 4th 485, 490 (1993) (holding that "[section 1008] is the exclusive means for modifying, amending or</p> |
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|  |  | <p>revoking an order. That limitation is expressly jurisdictional.”).</p> <p>The Court disagrees with Plaintiff’s interpretation of the cited authorities.</p> <p>First, the reviewing court in <i>Gilberd</i> found that a court granting <i>reconsideration</i> may do so <i>only</i> under the provisions of Section 1008, not on grounds that would otherwise satisfy the requirements of Section 473. <i>Gilberd, supra</i>, 32 Cal. App. 4th at 1498. There, respondents sought relief under both Sections 1008 and 473. <i>Id.</i> The lower court granted reconsideration. <i>Id.</i> At issue on appeal was whether the lower court had jurisdiction to grant reconsideration despite respondent having not met the requirement to present “new or different facts, circumstances, or law” to justify reconsideration. <i>Id.</i> at 1498-99. The reviewing court held that reconsideration was improperly granted because the statutory requirement that a motion for reconsideration be based on “new or different facts, circumstances, or law” is jurisdictional. <i>Id.</i> at 501. Accordingly, a trial court exceeds its jurisdiction by granting reconsideration when the moving party fails to satisfy that threshold showing. This does not, however, foreclose an applicant seeking relief from a prior order under Section 473.</p> <p>Second, <i>Morite</i> more appropriately stands for the proposition that a court may not <i>sua sponte</i> reconsider, modify, amend, or revoke an interim order without invoking the authority of Section 1008. The controversy in <i>Morite</i> centered on a court’s decision during a status conference to ignore a prior judge’s order to stay proceedings. <i>Morite, supra</i>, 19 Cal. App. 4th at 488-490. Rather than meeting the jurisdictional prerequisite findings required by Section 1008, the court set a number of causes of action for trial on the ground that the plaintiff believed the matters could be resolved pursuant to motions for summary judgment. <i>Id.</i> at 498. The lower court justified its actions under its authority to manage its calendar, rather than under Section 1008. <i>Id.</i> The reviewing court vacated the lower court’s order setting the causes of action for trial, finding that the lower court’s “implicit reconsideration of the prior stay order[] ultimately deprived petitioners of a</p> |
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|  |  | <p>meaningful opportunity to argue the provisions of section 1008 . . . or to present argument that the stay order should not be modified, amended, or revoked . . . .”</p> <p>Accordingly, a court exceeds its jurisdiction when it <i>sua sponte</i> reconsiders and thereafter amends, modifies, or vacates a prior order without invoking the authority of Section 1008. This does not, however, foreclose an applicant seeking relief from a prior order under Section 473.</p> <p>Additionally, the Court finds an important temporal and substantive distinction between motions for reconsideration under Section 1008 and requests for relief under Section 473.</p> <p>Reconsideration is predicated on “new or different facts, circumstances, or law” that were not known or presented to the court at the time of the challenged order that relate to the substantive merits underlying the court’s ruling. Cal. Civ. Proc. Code § 1008(b). By contrast, relief under section 473 is directed not at the merits of the court’s underlying ruling, but at the consequences of a judgment, order, or other proceeding entered as a result of a party’s or counsel’s “mistake, inadvertence, surprise, or excusable neglect.” Cal. Civ. Proc. Code § 473(b). In other words, section 473 addresses errors or omissions that prevented the matter from being properly presented, rather than providing a vehicle to relitigate the substantive factual or legal basis of the court’s prior ruling.</p> <p>Here, Defendant seeks relief from the Court’s order granting Plaintiff’s Motion to Compel the Deposition of Defendant’s PMQ and imposing sanctions upon Defendant’s counsel for their failure to appear for IDC. ROA 81. The Court’s order does not result in default, default judgment, or dismissal; thus, Defendant is not eligible for mandatory relief under the attorney-fault provision of Section 473(b).</p> <p>Additionally, the relevant sections of the Civil Discovery Act do not contain specific provisions governing the relief sought by Defendant. <i>See</i> Cal. Civ. Proc. Code §§ 2025-2025.620. Accordingly, Defendant is entitled to seek relief</p> |
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|  | <p>under Section 473.</p> <p>In determining whether the attorney’s mistake or inadvertence is excusable, courts inquire whether a reasonably prudent person under the same circumstances would have made the same error. <i>Hover v. MacKenzie</i>, 122 Cal. App. 2d 852, 857 (1944). “Conduct falling below the professional standard of care, such as failure to timely object or to properly advance an argument, is not...excusable. <i>McClain v. Kissler</i>, 39 Cal. App. 5th 399, 414 (2019) (quoting <i>Zamora v. Clayborn Contracting Group, Inc.</i>, 28 Cal. 4th 249, 258 (2002)).</p> <p>Clerical and ministerial errors weigh in favor of granting relief.</p> <p>For example, courts have set aside judgments in the following situations: (1) The attorney mistakenly checked the ‘with prejudice’ box instead of the ‘without prejudice’ box (see <i>Romadka v. Hoge</i>, 232 Cal. App. 3d 1231, 1237 (1991)); (2) an associate misinterpreted the instructions of the lead attorney and gave incorrect information at a hearing (see <i>Bergloff v. Reynolds</i>, 181 Cal. App. 2d 349, 358–359 (1960)); and (3) the attorney’s secretary lost the answer to be filed (see <i>Alderman v. Jacobs</i>, 128 Cal. App. 2d 273, 275–276 (1954)).</p> <p><i>Zamora, supra</i>, 28 Cal. 4th at 259.</p> <p>Here, the Court granted Plaintiff’s M-DEPO when Defendant counsel failed to appear for an Informal Discovery Conference (“IDC”) as ordered. ROA 60.</p> <p>Defendant counsel offers that their failure to appear was the result of a calendaring issue attributable to a confluence of unforeseen clerical and technological errors. ROA 79, ¶ 2. Defendant offers that affirmative measures have been implemented to prevent the issue from recurring. ROA 79, ¶ 3. In light of the foregoing, the Court finds that Defendant’s failure to appear for IDC was the result of excusable neglect.</p> <p>The party seeking relief must be diligent. “Application for</p> |
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|  | <p>this relief . . . shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken.” Cal. Civ. Proc. Code § 473(b).</p> <p>Here, the Court issued its order granting Plaintiff’s M-DEPO and imposing monetary discovery sanctions upon Defendant on February 23, 2026. ROA 60. Defendant filed their Motion for Relief on March 18, 2026. ROA 81. Accordingly, the Court finds that Defendant has been diligent in seeking relief.</p> <p>Courts also consider prejudice to the opposing party. “Section 473 is often applied liberally where the party in default moves promptly to seek relief, and the party opposing the motion will not suffer prejudice if relief is granted.” <i>Elston v. City of Turlock</i>, 38 Cal. 3d. 227, 233 (1985) (citing <i>Berri v. Rogero</i>, 168 Cal. 736, 740 (1914)). “The law looks with [particular] disfavor on a party who, regardless of the merits of his cause, attempts to take advantage of the mistake, surprise, inadvertence, or neglect of his adversary.” <i>Zamora, supra</i>, 28 Cal. 4th, at 258 (citing <i>Reed v. Williamson</i>, 185 Cal. App. 2d 244, 248 (1960)).</p> <p>Here, the Court finds that should Defendant’s relief be granted, Plaintiff will neither suffer a substantial change in position nor be precluded from obtaining a judgment in Plaintiff’s favor on the merits of their M-DEPO. Consequently, Plaintiff will not suffer prejudice should the Court grant Defendant’s motion.</p> <p>“[B]ecause the law strongly favors trial and disposition on the merits, any doubts in applying section 473 must be resolved in favor of the party seeking relief from default.” <i>Maynard v. Brandon</i>, 36 Cal. 4th 364, 371 (2005) (citations omitted).</p> <p>In the Court’s interpretation of the authority cited throughout, the public policy weighing in favor of the party seeking relief applies principally to cases of default judgment. Here, the Court’s order granting Plaintiff’s M-DEPO for Defendant’s failure to appear for IDC does not result in final adjudication and has minimal impact on the</p> |
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|  | <p>parties' ability to resolve the underlying case on the merits. Thus, the Court finds that the public policy considerations are not applicable to the Court's Order at controversy here.</p> <p>Regardless of the foregoing, the Court finds that the factors considered above weigh in favor of granting Defendant's sought after relief.</p> <p>Accordingly, the Court makes the following Orders:</p> <p>Defendant's Motion to vacate the Court's February 23, 2026, Order granting Plaintiff's Motion to Compel Deposition and imposing monetary sanctions upon Defendant's counsel is <b>GRANTED</b>.</p> <p>The Court's February 23, 2026, Order (ROA 60) is <b>VACATED</b>.</p> <p>Plaintiff's Motion to Compel Deposition of Defendant's Person Most Qualified (ROA 32) is restored to August 12, 2026, at 9:00 a.m. in this department. Note, this is for calendaring only, not to be heard on the merits.</p> <p>Parties are <b>ORDERED</b> to attend an Informal Discovery Conference ("IDC") on August 12, 2026, at 9:00 a.m. in this department. Parties are to submit a Joint Letter Brief, not exceeding four pages, single-spaced, in letter format, no later than five (5) court days prior to the IDC. Personal appearance is mandatory. Parties present must have unconstrained authority to resolve.</p> <p>Defendant to give notice.</p> |
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| 4. | <p><a href="#"><u>30-2024-01374534-CU-PO-NJC</u></a><br/>K. vs. Mendoza</p> | <p>Before the Court is a Motion for Relief from Waiver of Objection (ROA 186); Motion to Compel Further Responses to Requests for Production (ROA 271); Motion to Compel Further Responses to Requests for Production (ROA 271); and Motion to Compel Further Responses to Requests for Production (ROA 271).</p> <p>On July 23, 2025, Plaintiff Gina K. (“Plaintiff”) filed a Motion to Compel Production against Defendant Kaiser Foundation Health Plan, Inc.; Defendant Kaiser Foundation Hospitals; and Defendant Southern California Permanente Medical Group (collectively “Defendants”). ROA 118.</p> <p>On March 11, 2026, Defendants filed a Motion for Relief from Waiver of Objections. ROA 186.</p> <p>On May 22, 2026, the Court ordered Plaintiff to file amended narrow motions to compel no later than June 10, 2026. ROA 262.</p> <p>On June 9, 2026, Plaintiff filed narrowed amended motions and an amended separate statement. <i>See</i> ROA 269, 271.</p> <p>Plaintiff requests that the Court enter an order compelling Defendants to provide full and complete further verified responses, including the responsive documents, without objections to the Request for Production. ROA 271. Additionally, Plaintiff seeks monetary sanctions be awarded in the amount of \$8,060.00. <i>Id.</i></p> <p style="text-align: center;">I. Untimely Opposition</p> <p>The court has broad discretion to accept or reject late filed papers filed beyond the deadline without a prior court order finding good cause for the late submission. Cal. Rules of Court, Rule 3.1300(d); <i>see also Rancho Mirage Country Club Homeowners Assn. v. Hazelbaker</i>, 2 Cal. App. 5th 252, 262–263 (2016); <i>Samaniego v. Empire Today LLC</i>, 205 Cal. App. 4th 1138, 1146, (2012).</p> <p>The Court notes that Plaintiff’s Opposition to Defendants’ Motion for Relief from Waiver of Objections was untimely. The Motion was set for hearing on July 23, 2026. ROA 262.</p> |
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|  |  | <p>Plaintiff's Opposition was due on July 10, 2026. Cal. Civ. Proc. Code, § 1005(b). Plaintiff did not file the Opposition until July 16, 2026. ROA 287. Accordingly, the Court declines to consider the untimely Opposition.</p> <p>II. Untimely Responses to Request for Production</p> <p>Under California Code of Civil Procedure Section 2031.300, if the responding party fails to serve a timely response to a demand, the responding party waives any objection to the demand, including one based on privilege or on the protection for work product. Cal. Civ. Proc. Code § 2031.300.</p> <p>On August 7, 2024, Plaintiff propounded Plaintiff's Request for Production, Set One, on Defendants. ROA 271.</p> <p>On June 30, 2025, Defendants untimely served responses to Plaintiff's Request for Production, Set One. At that time, objections were waived by operation of law.</p> <p>III. Motion for Relief From Waiver</p> <p>California Code of Civil Procedure Section 2031.300 provides that the Court may relieve a party from waiver on its determination that both of the following conditions are satisfied: "[t]he party has subsequently served a response that is in substantial compliance with Sections 2031.210, 2031.220, 2031.230, 2031.240, and 2031.280"; and "[t]he party's failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect." Cal. Civ. Proc. Code § 2031.300 (a)(1)-(2).</p> <p>A person who seeks relief under the theory of excusable neglect, must show that the neglect was attributable to an act or omission which might have been committed by a reasonably prudent person under the circumstances. <i>Transit Ads, Inc. v. Tanner Motor Livery, Ltd</i>, 270 Cal. App. 2d 275, 279 (1969) (citations omitted).</p> <p>Here, Defendants' counsel argues that, due to a "clerical mistake," they inadvertently failed to serve responses to the discovery requests. ROA 186. However, counsel provides</p> |
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no explanation of the alleged “clerical mistake,” including how the mistake occurred, who was responsible for it, or why it should warrant relief. *Id.* On this record, the Court finds that Defendants have failed to establish that this is the type of mistake for which relief is available. Accordingly, Defendants’ Motion for Relief from Waiver of Objections is **DENIED**, and all objections remain waived by operation of law.

#### IV. Motion to Compel Further Responses to Request for Production

Responses to requests for production must take the form of either: (i) an agreement to comply; (ii) a representation of inability to comply; or (iii) objections. Cal. Civ. Proc. Code § 2031.210(a).

An agreement to comply is a statement that the party will comply with the demand by the specified date. Cal. Civ. Proc. Code § 2031.210(a). The response must be specific as to what is agreed and must state both: (1) that the production or inspection will be permitted in whole or in part; and (2) that the items demanded that are in the responding party’s custody or control, which are not subject to objections, will be produced. Cal. Civ. Proc. Code § 2031.220. Importantly, the items to which the responding party agrees to produce must be of the “demanded category” of items requested by the propounding party. *Id.*

Compliance requires that the responding party produce the documents specified in the demand *on the date specified*, and identify any documents produced with the specific request number to which they respond. Cal. Civ. Proc. Code § 2031.280(a)-(b).

A statement that the responding party is unable to comply with the demand for production must: (1) affirm that the responding party conducted a diligent search and a reasonable inquiry in an effort to locate the demanded item; and (2) state the reason the party is unable to comply. Cal. Civ. Proc. Code § 2031.230. Acceptable reasons include that “the particular item or category has never existed, has been

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|  | <p>destroyed, has been lost, misplaced, or stolen, or has never been, or is no longer, in the possession, custody, or control of the responding party. <i>Id.</i> If the responding party either knows or believes that another party has possession, custody, or control of the demanded item, the responding party must state the <i>name</i> and <i>address</i> of said party. <i>Id.</i></p> <p>At the outset, the Court notes that the moving party's amended separate statement was less than helpful in the resolution of the discovery dispute. <i>See</i> ROA 269. Nevertheless, the Court finds as follows:</p> <p>a. RFP No. 5</p> <p>Upon review, the Court finds that Defendants' response to RFP No. 5 is code compliant and no further response is warranted. <i>See</i> ROA 269.</p> <p>b. RFP No. 9</p> <p>Upon review, the Court finds that Defendants' response is not code compliant and a further response is warranted. <i>See Id.</i> Defendants' response consisted entirely of objections, which have been waived by operation of law. Accordingly, the Court <b>ORDERS</b> Defendants to provide a further code compliant response and any and all responsive documents without objection no later than August 13, 2026, unless stipulated otherwise.</p> <p>c. RFP No. 13</p> <p>Upon review of the separate statement and the Declaration of Blaine Yanabu, the Court finds that Defendants' response is code compliant and no further response is warranted. <i>See Id.</i></p> <p>d. RFP No. 14</p> <p>Upon review, the Court finds that Defendants' response is not code compliant and a further response is warranted. <i>See</i> ROA 269. Defendants' response failed to state the address of the party believed to have possession, custody, or control of the requested information. Accordingly, the Court</p> |
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|  | <p><b>ORDERS</b> Defendants to provide a further code compliant response to include the name and <i>address</i> of the party believed to have possession, custody, or control, no later than August 13, 2026, unless stipulated otherwise.</p> <p>e. RFP Nos. 6, 7, 8, 10, 11, 12, and 15</p> <p>Upon review, the Court finds that Defendants’ responses are not code compliant and further responses are warranted. <i>See Id.</i> Defendants’ responses each state that they “will produce in whole,” but fail to specify the date of production. Accordingly, the Court <b>ORDERS</b> Defendants to provide further code compliant responses no later than August 13, 2026.</p> <p>V. Mandatory Sanctions</p> <p>California Code of Civil Procedure Section 2031.310(h) provides that the court “shall impose a monetary sanction under Chapter 7 against [anyone] who unsuccessfully makes or opposes a motion to compel further responses to a demand . . . <i>unless</i> it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” Cal. Civ. Proc. Code § 2031.310(h).</p> <p>The term “substantial justification” means “a justification that ‘is clearly reasonable because it is well grounded in both law and fact.’” <i>In re Marriage of Moore</i>, 102 Cal. App. 5th 1275, 1287 (2024) (quoting <i>Doe v. U.S. Swimming, Inc.</i>, 200 Cal. App. 4th 1424, 1434 (2011)).</p> <p>To avoid sanctions, a party may show “substantial justification” for his or her position—<i>i.e.</i>, a rational basis to conclude that the party’s failure to fulfill its discovery obligations was justified. <i>Pollock v. Super. Ct.</i>, 93 Cal. App. 5th 1348, 1358 (2023) (citing <i>Foothill Properties v. Lyon/Copley Corona Associates</i>, 46 Cal. App. 4th 1542, 1557 (1996)); <i>see also</i> Cal. Civ. Proc. Code § 2030.090(d); <i>U.S. Swimming, Inc.</i>, <i>supra</i>, 200 Cal. App. 4th at 1435.</p> <p>The Court “must make an explicit finding this exception exists,” however, “the court <i>need not</i> make an explicit</p> |
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|  | <p>finding the exception does not exist . . . .” <i>Parker v. Wolters Kluwer U.S., Inc.</i>, 149 Cal. App. 4th 285, 294 (2007) (emphasis added).</p> <p>Additionally, California Code of Civil Procedure Section 2023.030 permits a court to impose monetary sanctions on “one engaging in the misuse of the discovery process, or any attorney advising that conduct . . .” or any party who “unsuccessfully assert[s] that another has engaged in the misuse of the discovery process, or on any attorney who advised that assertion, or on both.” Cal. Civ. Proc. Code § 2023.030(a). Courts <i>shall</i> impose monetary sanctions absent a finding “that the one subject to the sanction acted with substantial justification.” <i>Id.</i></p> <p>If the <i>attorney</i> is responsible, for instance, by instructing a client not to answer without substantial justification, failing to meet and confer in good faith, or failing to provide timely responses, the sanction can be imposed directly on the attorney. <i>See generally Ghanooni v. Super Shuttle</i>, 20 Cal. App. 4th 256, 260-261 (1993); <i>Ellis v. Toshiba America Info. Sys.</i>, 218 Cal. App. 4th 853, 879-80 (2013); <i>see Deck v. Developers Inv. Co., Inc.</i>, 89 Cal. App. 5th 808, 829-832 (2023).</p> <p>Courts consistently hold that untimely compliance does not preclude the imposition of monetary sanctions. <i>See</i> Cal. Rules of Court Rule 3.1348 (“The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though . . . the requested discovery was provided to the moving party after the motion was filed.”); <i>see also Deck v. Developers Inv. Co., Inc.</i>, 89 Cal. App. 5th 808, 831 (2023) (“[u]ntimely compliance is not compliance.”).</p> <p>In light of Defendants’ counsel’s lack of substantial justification, sanctions are mandatory.</p> <p style="text-align: center;">VI. Sanctions Amount</p> <p>Three principles guide the award and amount of attorney’s fees and costs imposed as a discovery sanction. <i>See Cornerstone Realty Advisors, LLC v. Summit Healthcare REIT</i>,</p> |
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|  |  | <p><i>Inc.</i>, 56 Cal. App. 5th 771, 790-91 (2020) (compulsion, causation, and reasonableness).</p> <p>“The amount of monetary sanctions is limited to the ‘reasonable expenses, including attorney’s fees’ that a party incurred as a result of the discovery abuse.” <i>Cornerstone, supra</i>, 56 Cal. App. 5th at 791 (quoting Cal. Civ. Proc. Code § 2023.030(a)). The principle of reasonableness means a trial court has discretion to reduce the amount of fees and costs requested as a discovery sanction in order to reach a reasonable award. <i>Id.</i>, (citing <i>Parker v. Wolters Kluwer U.S., Inc.</i>, 149 Cal. App. 4th 285, 294 (2007)).</p> <p>“After a motion to compel discovery has been filed, further expenses incurred in meeting and conferring on the discovery dispute, whether it be through private mediation or normal channels of communication, are not compensable as discovery sanctions.” <i>In re Marriage of Moore</i>, 102 Cal. App. 5th 1275, 1301 (2024) (emphasis added).</p> <p>Accordingly, the Court finds that the sanctions requested by the moving party are unreasonable and exercises its discretion to reduce the sanctions amount to \$3,503.</p> <p>As such, the Court makes the following orders:</p> <p>The Court <b>DENIES</b> Defendants’ Motion for Relief from Waiver of Objections and all objections remain waived by operation of law.</p> <p>The Court <b>GRANTS IN PART</b> Plaintiff’s Motions to Compel Further Responses to Requests for Production.</p> <p>Defendants are <b>ORDERED</b> to provide a further code compliant response without objection to RFP No. 9 and produce any and all responsive documents no later than August 13, 2026, unless stipulated otherwise.</p> <p>Defendants are <b>ORDERED</b> to provide further code compliant responses to RFP Nos. 6, 7, 8, 10, 11, 12, 14, and 15, no later than August 13, 2026, unless stipulated otherwise. <i>See supra</i>.</p> |
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|    |                                                                                                               | <p>Lastly, the Court <b>IMPOSES</b> sanctions in the amount of \$3,503 against Defendants' counsel Kelly Trotter &amp; Franzen due and payable to Kyle Scott Law within thirty (30) days of receiving notice.</p> <p>Plaintiff to give notice.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |
| 5. | <a href="#"><u>30-2025-01511675-CU-BC-NJC</u></a><br>Coastal Commercial Medical, LLC vs. PA Coastal Kids, LLC | <p>Before the Court are two (2) Motions to Compel Deposition ("M-DEPO"), and Sanctions, brought by Plaintiff Coastal Commercial Medical, LLC ("Plaintiff") against Defendant PA Coastal MSO, LLC ("Defendant"). ROAs 27, 28.</p> <p>The underlying controversy is a breach of contract claim arising from a commercial lease of real property. ROA 10.</p> <p>Plaintiff seeks an order, pursuant to California Code of Civil Procedure Sections 2025.280 and 2025.450, compelling Defendant to produce employee Chester Slonaker, M.D. ("Slonaker") for deposition and to provide testimony. ROA 27, p.2. Additionally, Plaintiff seeks monetary discovery sanctions upon Defendant and Defendant's counsel of record, Kilpatrick Townsend &amp; Stockton LLP, jointly and severally, in the amount of \$12,751.80, for the costs borne by Plaintiff in bringing the M-DEPO for Slonaker. ROA 28, p. 8.</p> <p>Plaintiff also seeks an order, pursuant to California Code of Civil Procedure Sections 2025.280 and 2025.450, compelling Defendant to produce employee Michael Manocchio ("Manocchio") for deposition and to provide testimony. ROA 28, p.2. Additionally, Plaintiff seeks monetary discovery sanctions upon Defendant and Defendant's counsel of record, Kilpatrick Townsend &amp; Stockton LLP, jointly and severally, in the amount of \$7,624.30, for the costs borne by Plaintiff in bringing the M-DEPO for Manocchio. ROA 28, p. 8.</p> <p>Defendant requests that the Court deny Plaintiff's motions and issue a protective order precluding the depositions of</p> |

Manocchio and Slonaker and any discovery into Defendant's patient communications and financial information. ROA 88, ¶ IV.

I. Motions for a Protective Order

A motion for protective order under Section 2025.420 must be accompanied by a meet and confer declaration that complies with the provisions of Section 2016.040. Cal. Civ. Proc. Code § 2025.420(a). Effective January 1, 2026, a meet and confer declaration "shall state facts showing a reasonable and good faith attempt" on the part of the moving party to meet and confer either in person, telephonically, or by videoconference; e-mail alone will no longer suffice under this standard. Cal. Civ. Proc. Code § 2016.040(a). Additionally, the moving party's declaration "shall include whether [they have] met and conferred, including through an electronic communication, regarding the retention of a certified shorthand reporter to report the hearing on the motion." Cal. Civ. Proc. Code § 2016.040(b).

The Court finds that Defendant's request for a protective order does not contain a declaration that complies with California Code of Civil Procedure Section 2016.040. Consequently, Defendant's request for a protective order is **DENIED**.

II. Valid Objections to Deposition Notice

Valid objections to deposition notice must go to error or irregularity of the notice. *See* Cal. Civ. Proc. Code § 2025.410(a). Further, serving a code compliant objection to a deposition notice does *not* automatically stay the deposition absent a motion by the objecting party to stay or quash the deposition. *See* Cal. Civ. Proc. Code § 2025.410(c).

A "plaintiff may serve a deposition notice without leave of court on any date that is 20 days after the service of the summons on, or appearance by, any defendant." Cal. Civ. Proc. Code § 2025.210(b). A court may grant a plaintiff leave to serve a deposition notice on an earlier date, either on motion or without notice, for good cause shown. *Id.*

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|  | <p>Here, summons was served upon Defendant on September 15, 2025. ROA 4. On February 26, 2026, Plaintiff served Defendant with Notices of Deposition of Slonaker and Manocchio. ROA 42, ¶ 6; ROA 40, ¶ 6. The 20-day limit imposed by Section 2025.210 is satisfied here.</p> <p>Oral depositions must be scheduled at least ten (10) days after service of the deposition notice, unless shortened or extended by the court for good cause shown. Cal. Civ. Proc. Code 2025.270.</p> <p>Here, Plaintiff's February 26, 2026, Notices of Deposition scheduled the in-person deposition of Slonaker for March 17, 2026, and of Manocchio for March 18, 2026. ROA 42, ¶ 6; ROA 40, ¶ 6. Thus, the ten (10) day limit imposed by Section 2025.270 is satisfied.</p> <p>The deposition of a natural person must be taken, at the noticing party's option, at a place that is <i>either</i> within seventy-five (75) miles from the deponent's residence <i>or</i> anywhere within the county where the action is pending that is also within 150 miles of the deponent's residence. Cal. Civ. Proc. Code 2025.250(a). A court may exercise its discretion to permit the deposition of a natural person at a place more distant than that permitted under Section 2025.250, upon motion accompanied by a meet and confer declaration and after considering "any factor tending to show whether the interests of justice will be served" in doing so. Cal. Civ. Proc. Code § 2025.260(a), (b).</p> <p>Here, Plaintiff's deposition notice scheduled the deposition to occur in Fort Lauderdale, Florida, where both deponents reside. ROA 42, ¶ 6; ROA 40 ¶ 6; <i>see</i> ROA 42, Exh. A. Again, Plaintiff's notice complies with statutory guidelines.</p> <p>A party that is served with a deposition notice that does not comply with the provisions of Section 2025.210, outlined above, waives any error or irregularity unless they serve a written objection specifying the error or irregularity at least three (3) days before the scheduled deposition upon the noticing party and all other parties served with notice of the deposition. Cal. Civ. Proc. Code § 2025.410(a), (b).</p> |
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On March 12, 2026, Defendant served Responses and Objections to Plaintiff's Notices of Deposition and Demand for Production. ROA 42, ¶ 9; ROA 40, p. 69. The Court finds that Defendant's objections raised in opposition to Plaintiff's Deposition Notices are not valid objections to a properly noticed deposition. Accordingly, Defendant has waived any objection to Plaintiff's deposition notices to Slonaker and Manocchio on the grounds of error or irregularity. Additionally, because Defendant did not move the Court to stay or quash the deposition, Defendant's failure to produce Slonaker for Plaintiff's properly noticed deposition constitutes discovery misuse.

### III. Motions to Compel Deposition

Under California Code of Civil Procedure Section 2025.450, when a party to the action fails to appear for examination after having received proper deposition notice, and without having served a valid objection under Section 2025.410, the party giving notice may move for an order compelling the deponent's attendance, testimony, and production of documents. Cal. Civ. Proc. Code § 2025.450(a). All motions to compel a deponent to appear or proceed with deposition, or to produce documents, electronically stored information, or tangible things for inspection must "be accompanied by a meet and confer declaration" that states that the moving party "has contacted the deponent to inquire about the nonappearance" or failure to produce. Cal. Civ. Proc. Code § 2025.450(b)(2). The meet and confer declaration must satisfy the statutory requirements of California Code of Civil Procedure Section 2016.040 only when a party seeks a deponent's *further* responses to questions posed at deposition. *Id.*

Here, on March 10, 2026, Defendant informed Plaintiff by email that, due to issues raised in Plaintiff's responses to Defendant's discovery demands, Defendant would not produce either deponent. ROA 42, ¶ 8. In response, Plaintiff offered to withdraw the document production requests that the parties agreed should not be produced absent a protective order. ROA 42, Exh. F, p.40.

On March 11, 2026, Defendant responded by email that

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|  | <p>Plaintiff's offer to withdraw the document requests would not cure Defendant's objections to Plaintiff's Deposition demand and reiterated that Defendant would not produce either deponent for deposition. ROA 42, Exh. F, p. 37.</p> <p>On March 12, 2026, Defendant served Responses and Objections to Plaintiff's Notice of Deposition and Demand for Production. ROA 42, ¶ 9; ROA 40, Exh. G, p.69</p> <p>On March 13, 2026, Plaintiff sent an email to Defendant advising Defendant of Defendant's improper objections and requesting Defendant provide authority for their refusal to provide deposition testimony and production. ROA 42, ¶ 10.</p> <p>On March 18, 2026, Plaintiff served both herein motions upon Defendant by email. ROA 27, p.9; ROA 28, p.9.</p> <p>Pursuant to the foregoing, and because Defendant failed to produce either deponent for the properly noticed depositions, the Court finds that Plaintiff has satisfied the less restrictive statutory meet and confer requirement under California Code of Civil Procedure Section 2025.450(b)(2).</p> <p>Rule 3.1345 of the California Rules of Court requires motions to compel answers at deposition to be accompanied by a separate statement. Cal. Rules of Court, rule 3.1345(a). No separate statement is required when: (i) no response has been provided to the discovery request; or (ii) a court has permitted the moving party to submit a concise outline of the discovery request and each response in the dispute instead of a separate statement. Cal. Rules of Ct. rule 3.1345(b). Failure to submit a separate statement is sufficient justification for a court to exercise its discretion to deny a discovery motion. <i>See Mills v. U.S. Bank</i>, 166 Cal. App. 4th 871, 893 (2008).</p> <p>Here, the Court finds that Defendants failed to appear for Plaintiff's properly noticed depositions without serving valid objections. Because Defendants never provided a response to questions at deposition, the Court finds that Plaintiff is not required to submit a separate statement to justify Defendant's compelled deposition testimony.</p> |
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However, motions compelling the deponent's production of documents must also "set forth specific facts showing good cause justifying the production for inspection of any document . . . in the deposition notice[]". Cal. Civ. Proc. Code § 2025.450(b)(1). Rule 3.1345 of the California Rules of Court achieves this by requiring motions to compel or to quash production at deposition to be accompanied by a separate statement. Cal. Rules of Court rule 3.1345(a).

Pursuant to the foregoing, the Court finds that Plaintiff's motions are proper, that Defendant has not raised any valid objections to the deposition notice, and that, therefore, the deposition must proceed under Court order.

The Court notes that Plaintiff did not submit separate statements setting forth specific facts showing good cause justifying the production of the documents sought in Plaintiff's deposition notices. Consequently, Plaintiff is not entitled to Defendant's compelled production of the documents sought in Plaintiff's Notice of Deposition to Slonaker or Manocchio. Because Plaintiff also does not seek to compel the production of the documents sought in Plaintiff's deposition notice, the Court does not attribute the absence of Plaintiff's separate statements as discovery misuse.

#### IV. Sanctions re: Motions to Compel Deposition

When a court grants a motion to compel under Section 2025.450, the court must impose monetary sanctions in favor of the noticing party and against the deponent, "unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." Cal. Civ. Proc. Code § 2025.450(g)(1). The term "substantial justification" means a justification that "is clearly reasonable because it is well grounded in both law and fact." *Doe v. U.S. Swimming, Inc.*, 200 Cal. App. 4th 1424, 1434 (2011).

Here, the Court does not find, and Defendant does not offer, any substantial justification for Defendant's failure to

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|  | <p>either raise legitimate objections to Plaintiff’s deposition notice, or for failing to appear at Plaintiff’s properly noticed deposition. Additionally, the Court finds no facts indicating that imposing monetary sanctions will result in an injustice to the Defendant.</p> <p>V. Apportioning Sanctions</p> <p>California Code of Civil Procedure Section 2023.030 permits a court to impose monetary sanctions on “one engaging in the misuse of the discovery process, or any attorney advising that conduct . . .” or any party who “unsuccessfully assert[s] that another has engaged in the misuse of the discovery process, or on any attorney who advised that assertion, or on both.” Cal. Civ. Proc. Code § 2023.030(a). Courts shall impose monetary sanctions absent a finding “that the one subject to the sanction acted with substantial justification.” <i>Id.</i></p> <p>When the misconduct is clearly attributable to one party, courts should generally sanction only that party. However, when monetary sanctions are sought against an attorney for client misconduct, the court <i>must find</i> that the attorney advised the client to engage in the sanctionable conduct. <i>Cornerstone Realty Advisors, LLC v. Summit Healthcare REIT, Inc.</i>, 56 Cal. App. 5th 771, 799 (2020) (emphasis added).</p> <p>The burden then shifts to the attorney to prove that they did not provide such advice. <i>Id.</i> (citing <i>Ghanooni v. Super Shuttle</i>, 20 Cal. App. 4th 256, 260-261 (1993)); <i>compare Corns v. Miller</i>, 181 Cal. App. 3d 195, 200-201 (1986) (a court did not err in ordering monetary sanctions against an attorney where the attorney did not submit an opposition to the motion for sanctions, did not appear at the hearing, and failed to discharge his burden of proving he did not counsel disobedience) <i>with Kwan Software Eng’g, Inc. v. Hennings</i>, 58 Cal. App. 5th 57, 83 (2020) (finding substantial evidence that attorneys did not advise disobedience where attorneys provided multiple declarations, under penalty of perjury, in addition to e-mails and testimony in their defense).</p> <p>If the <i>client</i> engaged in the misconduct, for example, by refusing to answer discovery, hiding documents, or failing</p> |
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|  |  | <p>to appear for deposition, then sanctions should be imposed upon them. <i>See Ghanooni, supra</i>, 20 Cal. App. 4th at 261 (finding no liability for counsel for monetary sanctions where the client refused to submit to x-rays and the attorney’s declarations show that the attorney attempted to convince the client to comply).</p> <p>If the <i>attorney</i> is responsible, for instance, by instructing a client not to answer without substantial justification, failing to meet and confer in good faith, or failing to provide timely responses, the sanction can be imposed directly on the attorney. <i>See generally Ghanooni, supra</i>, 20 Cal. App. 4th at 256. If the Court finds that both are responsible, sanctions can be imposed jointly and severally. <i>See Cornerstone, supra</i>, 56 Cal. App. 5th 771, 799 (2020).</p> <p>“An attorney may only be penalized . . . for advising disobedience. It is not enough that the attorney’s actions were in some way improper and contributed to the disobedience of the court order.” <i>Corns, supra</i>, 181 Cal. App. 3d at 200.</p> <p>Here, the record before the Court indicates that counsel for Defendant clearly instructed Defendant not to appear at Plaintiff’s properly noticed deposition and that the deponent’s failure to appear is not attributable to client misconduct. <i>See</i> ROA 42, Exh. F. Thus, sanctions are appropriate against Defendant’s counsel only.</p> <p style="text-align: center;">VI. Determining a Reasonable Sanctions Amount</p> <p>Three principles govern the award and amount of attorney’s fees and costs imposed as a discovery sanction. <i>Cornerstone, supra</i>, 56 Cal. App. 5th at 790 (compulsion, causation, and reasonableness). Additionally, California Code of Civil Procedure Section 2023.040 requires a motion requesting sanctions to be accompanied by “a declaration setting forth facts supporting the amount of any monetary sanction sought.” Cal. Civ. Proc. Code § 2023.040.</p> <p>“The amount of monetary sanctions is limited to the ‘reasonable expenses, including attorney’s fees’ that a party incurred as a result of the discovery abuse.” <i>Cornerstone</i>,</p> |
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|  | <p><i>supra</i>, 56 Cal. App. 5th at 791 (quoting Cal. Civ. Proc. Code § 2023.030(a)). The principle of reasonableness means a trial court has discretion to reduce the amount of fees and costs requested as a discovery sanction in order to reach a reasonable award. <i>Id.</i> (citing <i>Parker v. Wolters Kluwer U.S., Inc.</i>, 149 Cal. App. 4th 285, 294 (2007)).</p> <p>“After a motion to compel discovery has been filed, further expenses incurred in meeting and conferring on the discovery dispute, whether it be through private mediation or normal channels of communication, are not compensable as discovery sanctions.” <i>In re Marriage of Moore</i>, 102 Cal. App. 5th 1275, 1301 (2024) (emphasis added).</p> <p>Pursuant to the foregoing, and after having considered Plaintiff’s counsel’s declaration concerning attorney’s fees and costs associated with bringing the instant motions, the Court finds that Plaintiff’s counsel is entitled to monetary discovery sanctions in the amount of \$6,001.80 for the costs incurred in bringing Plaintiff’s M-DEPO to Slonaker, and \$2,874.30 for the costs incurred in bringing Plaintiff’s M-DEPO to Manocchio.</p> <p>Accordingly, the Court issues the following orders:</p> <p>The Court <b>DENIES</b> Defendant's request for a protective order, <b>GRANTS</b> Plaintiff’s Motions to Compel Deposition, and <b>ORDERS</b> Defendant to produce Slonaker and Manocchio for deposition by no later than August 15, 2026.</p> <p>Additionally, the Court <b>IMPOSES</b> monetary discovery sanctions upon counsel for Defendant, Kilpatrick Townsend &amp; Stockton LLP, in the total collective amount of \$8,876.10, due and payable to Plaintiff’s counsel, Angelo &amp; White, no later than thirty (30) days after receiving notice of this Order.</p> <p>Plaintiff shall give notice.</p> |
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| 6. | <a href="#"><u>30-2022-01292807-CU-CO-CJC</u></a><br>Fang vs. Wang | <p>Before the Court is a Motion for Reconsideration submitted by Defendant/Cross Complainant Guoqing Wang ("Defendant"), pursuant to California Code of Civil Procedure Sections 1008 and 2025.420. ROA 341.</p> <p>Defendant requests that the Court vacate, modify, or stay the Court's May 19, 2026, order denying Defendant's motion for protective order and ordering Defendant to appear for deposition. <i>See</i> ROA 333.</p> <p>Defendant requests reconsideration on the grounds that new facts and evidence show that Defendant is currently incarcerated in China and unavailable for deposition. ROA 341, p.5.</p> <p>Plaintiffs/Cross Defendants Yili Fang and Dongying Pan (collectively, "Defendants") request that the Court deny Defendant's motion. ROA 345, p.6.</p> <p style="text-align: center;">I. Motions for Reconsideration</p> <p>Under California Code of Civil Procedure Section 1008, a party affected by a court's order "may, within [ten] 10 days after service upon the party of written notice of entry of the order," move the court to reconsider, modify, or revoke the court's prior order. Cal. Civ. Proc. Code § 1008(a). The moving party's application must be accompanied by an affidavit stating "what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances or law are claimed to be shown." Cal. Civ. Proc. Code § 1008(a).</p> <p>Importantly, applicants for reconsideration are subject to a strict standard of diligence in ensuring the new or different facts, circumstances, or law were not known or available at the time of the original application. <i>See Garcia v. Hejmadi</i>, 58 Cal. App. 4th 674, 690(1997). Courts will not consider new or different facts, circumstances, or law presented at application for reconsideration that courts find were available to the applicant at the time of the original application in controversy. <i>See Id.</i> (finding that the applicant failed to meet the requirements of Section 1008 by presenting facts on reconsideration that were available at</p> |
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|  |  | <p>the time of the original application, without offering any justification for its failure to present them earlier).</p> <p>Here, on April 20, 2026, Defendant moved for a protective order regarding Plaintiff's notice of deposition and document request. ROA 325. Defendant sought the protective order on the grounds that Defendant was detained in China and was not free to travel to appear for deposition. ROA 325, ¶ IV. Defendant's sworn declaration in support of his motion for a protective order presented testimony that supported these facts. ROA 325, Decl. of Helen Quan, Esq., ¶¶ 6-9.</p> <p>On May 19, 2026, during an Informal Discovery Conference facilitated by the Court, the parties submitted on the Court's tentative ruling denying Defendant's motion for a protective order and ordering Defendant to appear for deposition within thirty (30) days (June 18, 2026). ROA 333.</p> <p>In support of the present motion, Defendant presents exhibits that support Defendant's claim of unavailability due to incarceration in China. ROA 341, Exh. A. While the exhibits may not have been provided with Defendant's application, the essential elements of Defendant's incarceration were included in the original declarations in support of Defendant's motion for a protective order and were duly considered by the Court.</p> <p>Thus, the Court finds that Defendant's application for reconsideration presents no new or different facts, circumstances, or law that the Court did not consider in making its tentative ruling, to which Defendant already submitted. <i>See</i> ROA 333.</p> <p>Accordingly, Defendant's Motion for Reconsideration is <b>DENIED</b>.</p> <p>Clerk shall give notice.</p> |
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| 7. | <a href="#"><u>30-2023-01330408-CU-IC-CJC</u></a> |  |
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|  | U.S. Bank<br>National<br>Association vs.<br>Pacific Life<br>Insurance<br>Company |  |
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